



Institute for Community Inclusion
PROMOTING THE INCLUSION OF PEOPLE WITH DISABILITIES

UNIVERSITY OF MASSACHUSETTS BOSTON • BOSTON CHILDREN'S HOSPITAL

U.S. Department of Labor
Wage and Hour Division
Division of Regulations, Legislation, and Interpretation
200 Constitution Avenue, NW, Room S-3502
Washington, D.C. 20210

January 13, 2020

To Whom It May Concern:

I am writing to request an Opinion Letter regarding a section of Field Operations Handout – Chapter 64 - Employment of Workers with Disabilities at Subminimum Wages under Section 14(c). The specific section I am looking for an opinion on is section 64c08, Students with disabilities and workers with disabilities who are enrolled in individual rehabilitation programs (<https://www.dol.gov/agencies/whd/field-operations-handbook/Chapter-64#b64c08>), which allows for the participation of students and adults with disabilities in unpaid work experiences, for the purposes of vocational exploration, vocational assessment, and vocational training, under very proscribed circumstances. I am requesting this opinion in my role as a provider of technical assistance to state public disability systems, and community based rehabilitation organizations. This opinion is not being sought:

- By a party in a Wage and Hour investigation, its representative, or any third party acting on its behalf; or
- By a party, its representative, or any third party acting on its behalf for use in any litigation that was initiated prior to the submission of the opinion letter request.

The specific area within section 64c08 that I would like an opinion on is 64c008(c)(3), which states the following requirement for individuals who are participating in unpaid work experiences.

(3) Community-based placements must be clearly defined components of individual rehabilitation programs developed and designed for the benefit of each individual.

- a. Each student with a disability shall have an **Individualized Education Program (IEP)** that lists the needed transition services established for the exploration, assessment, training, or cooperative vocational education components.*
- b. Each participant in a community-based rehabilitation organization program must have an **Individual Plan for Employment (IPE)** that includes a statement of needed transition services established for exploration, assessment, or training components. In the past, these plans were called Individualized Written Rehabilitation Plans.*

Per this language, if an individual is out of school and enrolled in an individual rehabilitation program, they must have an Individual Plan for Employment (IPE). An IPE is only available if an individual has an open case in their state's public Vocational Rehabilitation program. However, for a variety of reasons (limited capacity of public Vocational Rehabilitation programs, inability of individuals to meet VR eligibility criteria, etc.), many individuals enrolled in individual rehabilitation programs are not clients/consumers of their state's public Vocational Rehabilitation program, but still receive services to assist them to pursue employment in the community. While these individuals do not have a public Vocational Rehabilitation IPE, they do generally have an Individual Service Plan (ISP), which is required for individuals receiving Medicaid funded Home and Community Based Services. The ISP provides extensive details regarding the services to be provided to the individual, including employment services and supports. Examples of ISP documents include:

- New Jersey ISP Form: https://www.nj.gov/humanservices/ddd/documents/DDD_ISP_LtrPlnTool.pdf
- Massachusetts ISP guide: <https://www.ddslearning.com/isp>

As you can see from looking at these documents, the ISP is a highly detailed planning process and document, which I believe would meet the intent of the requirements under 64c008 (c) (3), for an IPE or IEP, in terms of documenting the need for unpaid work experience.

In addition to individuals receiving employment assistance funded via Medicaid Home and Community Based Services as detailed under their ISP, individuals with disabilities not served by public Vocational Rehabilitation may be served instead under the Social Security Administration's Ticket to Work program, for which an Individual Work Plan (IWP) is required. The IWP is a standard form used nationally in this program:

<https://yourtickettowork.ssa.gov/Assets/yttw/docs/information-center/forms/Forms-SSA-1370-WEB-101817.pdf>. As with the ISP, it is my view that the IWP under Ticket to Work, meets the intent for the requirements under 64c008 (c) (3), requiring a planning document (IPE or IEP).

Given the factors above, I am asking for an Opinion Letter on whether an Individual Service Plan (ISP) as required for receiving Home and Community Based Services under a state's Medicaid waiver plan, or an Individual Work Plan (IWP) as required to receive services under the Social Security Administration's Ticket to Work program, meet the requirements for a service plan under the requirements of DOL Wage and Hour Field Operations Handbook Chapter 64, as detailed under 64c008 (c) (3).

It's important to note, that restricting the use of unpaid work experiences for individuals no longer in school to those who are clients/consumers of public Vocational Rehabilitation, is creating a real challenge in providing services reflective of best practice for individuals whose employment-related services are paid for by funding sources other than public Vocational Rehabilitation. We have heard from numerous community rehabilitation organizations in Massachusetts regarding this issue, and it has also arisen in our technical assistance work with a number of other states, including Colorado, Oregon, Missouri, and Ohio. The ability to conduct exploration, assessment, and training in integrated employment settings is an important tool and best practice for service providers in supporting individuals to become successfully employed in the general workforce. In turn, the inability to utilize

these types of experiences is creating significant barriers to reaching the goal of competitive integrated employment for individuals, as well as creating a challenge for federal and state efforts to increase the labor force participation of individuals with disabilities.

I would also like to note that there is nothing in terms of legislation or regulations that I am aware of that limits this provision to IEPs and IPEs, and therefore it appears that DOL Wage and Hour would have the ability to make this change without a regulatory change. Also, as best as I can tell, this section of the handbook hasn't been updated in over 25 years, and it would be good for it to be updated to reflect current practice (i.e., since 2003, implementation of an Employment First Policy in 39 states for their state intellectual and developmental disability and other agencies, and the establishment in 1999 of the Social Security Administration's Ticket to Work program).

Thank you for your attention to this matter, and please let me know if you have any questions.

Sincerely,

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